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Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: N/A

Sub-type: N/A

Assessment: N/A

2. Procedural Compliance Findings

S.35(3) BNSS notice before arrest [Arnesh Kumar (2014) / Satender Kumar Antil, 2026 INSC 115]

Status: May be Non-Compliant

Offence punishable up to 5 years (looked up from cited section); arrest was made after the event on the basis of investigation, and no other arrest power under S.35(1) has been established. No mention of the mandatory S.35(3) notice. Per Satender Kumar Antil (2026 INSC 115): notice is the rule and arrest the exception. The arrest may be illegal if no notice was in fact served.

Source: Arnesh Kumar v State of Bihar ((2014) 8 SCC 273)

¶[checklist (excerpted): All the State Governments to instruct its police officers not to automatically arrest when a case under Section 498-A of the IPC is registered but to satisfy themselves about the necessity for arrest under the parameters laid down above flowing from Section 41, Cr.PC; All police officers be provided with a check list containing specified sub-clauses under Section 41(1)(b)(ii); The police officer shall forward the check list duly filed and furnish the reasons and materials which necessitated the arrest, while forwarding/producing the accused before the Magistrate for further detention; The Magistrate while authorising detention of the accused shall peruse the report furnished by the police officer in terms aforesaid and only after recording its satisfaction, the Magistrate will authorise detention; The decision not to arrest an accused, be forwarded to the Magistrate within two weeks from the date of the institution of the case with a copy to the Magistrate which may be extended by the Superintendent of police of the district for the reasons to be recorded in writing; Notice of appearance in terms of Section 41A of Cr.PC be served on the accused within two weeks from the date of institution of the case, which may be extended by the Superintendent of Police of the District for the reasons to be recorded in writing; Failure to comply with the directions aforesaid shall apart from rendering the police officers concerned liable for departmental action, they shall also be liable to be punished for contempt of court to be instituted before High Court having territorial jurisdiction. We hasten to add that the directions aforesaid shall not only apply to the cases under Section 498-A of the I.P.C. or Section 4 of the Dowry Prohibition Act, the case in hand, but also such cases where offence is punishable with imprisonment for a term which may be less than seven years or which may extend to seven years; whether with or without fine.

Overall Assessment: test

3. Missing or Unclear Information

5. Documents to Gather

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